

Sanjay vs State on 9 August, 2010

Author: Anant S. Dave

Bench: Anant S. Dave

Gujarat High Court Case Information System

Print

SCA/9178/2010 2/ 2 ORDER

IN
THE HIGH COURT OF GUJARAT AT AHMEDABAD

SPECIAL
CIVIL APPLICATION No. 9178 of 2010

=====

SANJAY
ANAND JADAV - Petitioner(s)

Versus

STATE
OF GUJARAT & 1 - Respondent(s)

=====

Appearance :
MRHARSHADKPATEL
for Petitioner(s) : 1,
None for Respondent(s) : 1 -
2.

=====

CORAM

:

HONOURABLE

MR.JUSTICE ANANT S. DAVE

Date
: 09/08/2010

ORAL
ORDER

This petition under Articles 226 and 227 of the Constitution of India is filed by the petitioner-husband with a prayer to quash and set aside the order dated 12.11.2009 passed by the learned Chief Senior Civil Judge, Nadiad on interim application below Exh.5 filed under Section 24 of the Hindu Marriage Act (for short, 'the Act') for interim maintenance in pendente lite H.M.P. No.88 of 2009 by which the petitioner is directed to pay Rs.4,000/- p.m. to respondent-wife towards interim alimony.

2. It is submitted that the impugned order is contrary to law inasmuch as the application filed under Section 24 of the Hindu Marriage Act in a Hindu Marriage Petition under Section 30(1) of the Act could not have been filed at Nadiad when the wife resides at Vadodara. It is further submitted that baseless and frivolous allegations have been levelled against the petitioner and his parents and the petitioner is ready and willing to reside with the respondent-wife and, therefore, the impugned order of awarding interim alimony under section 24 of the Act is contrary to evidence on record with regard to source of income of the petitioner. It is further submitted that in view of the above, the impugned order deserves to be quashed and set aside in exercise of powers under Articles 226 and 227 of the Constitution of India.

3. Having heard learned advocate for the petitioner and on perusal of the record, it is revealed that in a marriage span of about 8 years, the husband and wife are residing separately since last 2 years. The marriage took place in village Manjipura, Dist.Nadiad and due to continuous harassment and physical and mental torture caused to the respondent-wife, she had no other option but to part with the petitioner. The learned Judge has even considered monthly income of the petitioner on the basis of his service as Plant Operator and in addition to above, the income derived from the tuition fees received from the students. The above findings of the facts recorded by the learned Judge while awarding interim alimony under section 24 of the Act, cannot be said to be contrary to evidence on record, which deserves any interference by this Court in exercise of powers under Article 226 and

227 of the Constitution of India.

No case is made out to entertain the present petition. Hence, this petition is rejected. There shall be no order as to costs.

However, it is made clear that any observations made in this order are only for deciding this writ petition and shall have no bearing on any pending proceedings between the parties.

[Anant S. Dave, J.] *pvv